

21STCV31219 21STCV31219

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Case Number: 21STCV31219 Hearing Date: July 22, 2026 Dept: H

Thomas, et al. v. Pomona

Healthcare & Wellness Center, LLC,

Case No. 21STCV31219

ORDER ON MOTION

FOR ABATEMENT

Defendant Pomona Healthcare & Wellness

Center, LLC's Motion for Abatement is GRANTED

in part, to the extent that the wrongful death portion of this action is
abated [see below].

Background

Plaintiff

Brenda Thomas, individually and as heir and successor in interest to Larry
Charles Jackson, deceased ("Plaintiff") alleges as follows:

Larry

Charles Jackson contracted COVID-19 during his residency at Park Avenue
Healthcare & Wellness Center in Covina, which ultimately led to his decline
and death on August 25, 2020.

On

August 24, 2021, Plaintiff filed a complaint, asserting causes of action
against Pomona Healthcare & Wel[l]ness Center, LLC dba Park Avenue
Healthcare & Wellness Center ("Defendant"), Does 1-50, and Does 51-60 for:
(1) Violations of the Elder and Dependent Adult Civil Protection Act [Welf.

& Inst. Code § 15600 et seq.], (2) Negligence, and (3) Wrongful Death.

The

Final Status Conference is set for January 12, 2027. Trial is set for January 26, 2027.

Legal

Standard

“A

cause of action for the death of a person caused by the wrongful act or neglect or another may be asserted by any of the following persons or by the decedent's personal representative on their behalf:

(a)

The decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession. If the parents of the decedent would be entitled to bring an action under this subdivision, and the parents are deceased, then the legal guardians of the decedent, if any, may bring an action under this subdivision as if they were the decedent's parents.

(b)(1)

Whether or not qualified under subdivision (a), if they were dependent on the decedent, the putative spouse, children of the putative spouse, stepchildren, parents, or the legal guardians of the decedent if the parents are deceased.

(2)

As used in this subdivision, 'putative spouse' means the surviving spouse of a void or voidable marriage who is found by the court to have believed in good faith that the marriage to the decedent was valid.

(c) A

minor, whether or not qualified under subdivision (a) or (b), if, at the time of the decedent's death, the minor resided for the previous 180 days in the decedent's household and was dependent on the decedent for one-half or more of the minor's support. . .

(f)(1) For

the purpose of this section, 'domestic partner' means a person who, at the time of the decedent's death, was the domestic partner of the decedent in a registered domestic partnership established in accordance with subdivision (b) of Section 297 of the Family Code. . .” (Code Civ. Proc., § 377.60.)

“A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.” (Code Civ. Proc., § 389, subd. (a).)

Discussion

Defendant

moves the Court for the issuance of an order, pursuant to Code of Civil Procedure section 377.60, for abatement and/or dismissal of this action based upon Plaintiff’s intentional omission of known heirs and/or indispensable parties to the Wrongful Death cause of action; alternatively, Defendant moves the Court for an order vacating the current January 26, 2027 and all related pre-trial dates, and for compulsory joinder of the omitted heirs pursuant to Code of Civil Procedure section 389, subdivision (a).

Defendant

represents that decedent’s medical records, as well as communications with Plaintiff’s former counsel’s office, reflect that there are several other potential heirs of decedent, including, but not limited to decedent’s surviving spouse, Joy Jackson, Debora Stewart, Georgia A. Jackson-Thompson, Tamir Rasheed, Clarke Jackson, June Curry, Larry Jackson, Jr., Lyndon Jackson, and Cheree Thomas. (Fischler Decl., ¶¶ 3 and 4, Exhs. A and B.)

The

motion is granted in part, to the extent that the wrongful death portion of this action is abated. “A wrongful death action is considered joint, single and indivisible, meaning that all heirs should join in a single action and there cannot be a series of suits by heirs against the tortfeasor for their individual damages.” (San Diego Gas & Electric Co. v. Superior Court (2007) 146 Cal.App.4th 1545, 1551.)

“Defendants facing

a wrongful death action in which all the heirs should have, but have not, been joined are entitled to move to abate the action. The California Supreme Court in holding that a wrongful death action by only a portion of the heirs is not the action authorized by statute said, 'All the heirs should, therefore, join as plaintiffs in an action by heirs, and if the consent of anyone who should be so joined cannot be obtained, he may be made a defendant (§ 382) . . . where all the heirs are not joined, and timely objection is made

on that ground by a defendant, the action should be abated, or, at least, the other heirs should be made parties.'" (Adams v. Superior Court (2011) 196 Cal.App.4th 71, 77, quoting Salmon v. Rathjens (1907) 152 Cal. 290, 294-295; see also Gonzalez v. Southern California Edison Co. (1999) 77 Cal.App.4th 485, 492 ["It is true that an heir—rather than the defendant—generally bears the burden of joining in a wrongful death action in order to recover through it. On the other hand, the defendant too has the ability to cause an omitted heir to be joined, and if the defendant knows of such an heir but settles the case without joining that heir or seeking to abate the action, the defendant remains subject to the heir's separate action"].)

Plaintiff

opposes on the basis that omitted heirs whose claims are barred by the statute of limitations are not indispensable parties, citing Andersen v. Barton Memorial Hospital, Inc. (1985) 166 Cal.App.3d 678 and San Diego Gas & Electric Co. v. Superior Court (2007) 146 Cal.App.4th 1545. That said, Defendant points out that, at a minimum, Plaintiff "fails to set forth any competent evidence to establish that the statute of limitations would bar or preclude the omitted heirs claims" and points out the possibility of potential tolling. (Reply, 2:7-15.)

The

Court directs counsel to meet and confer as to whether or not each of the above-named individuals constitute wrongful death claimants pursuant to Code of Civil Procedure section 377.60. Plaintiff's counsel is directed to provide confirmation of the relationship between decedent and each of the above-named individuals during the meet and confer process.

The

Court will set a Non-Appearance Case Review Re: Status of Abatement for August 21, 2026. Counsel are directed to file a Joint Status Report, advising the Court as to the outcome of their meet and confer efforts no later than five court days prior to the Non-Appearance Case Review.